

26VECV00883 26VECV00883

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-09-04

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Case Number: 26VECV00883 Hearing Date: September 4, 2026 Dept: NWI

26VECV00883 VOYNOVA v. THOMPSON, et al.

September 4, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Compel Further Responses to Form Interrogatories (Set One)

I.

Background

This is a landlord-tenant action arising out of the written lease agreement between Plaintiff Svetlana Voynova, individually and as a Trustee of Svetlana Voynova Family Revocable Living Trust ("Plaintiff") and Defendants Patrick Thompson, Jr.; Jill Thompson; and Lucia Thompson ("Thompson Defendants"), facilitated by Defendants Sheryl Lynn Scarsco ("Scarsco") and Forward Calabasas, Inc. d/b/a Keller Williams Realty Calabasas ("Keller").

On February 13, 2026, Plaintiff filed a Complaint against Thompson Defendants, Scarsco, Keller, and DOES 1 through 10 (collectively, "Defendants"), alleging causes of action for: (1) Breach of Written Contract; (2) Common Counts/Account Stated; (3) Breach of Fiduciary Duty; (4) Professional Negligence; and (5) Breach of Implied Covenant of Good Faith and Fair Dealing. Plaintiff alleges that she entered into an agreement on October 26, 2026, with Defendant Patrick Thompson, Jr., for him

and his three minor children to rent the property located at 4635 Esparto Rd, Woodland Hills, CA 91364 ("Property") for a total of \$132,000.00 paid in monthly installments of \$5,500.00. Plaintiff alleges that Patrick Thompson, Jr. has breached the agreement by failing to pay the agreed upon rent and allowing third parties to reside in the Property.

On February 25, 2026, the Thompson Defendants filed their Answer to the Complaint. On April 22, 2026, Keller and Scarsco filed their joint Answer to the Complaint.

On June 29, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Form Interrogatories (Set One). On July 22, 2026, Defendants Patrick Thompson, Jr. (hereinafter, "Mr. Thompson") filed an Opposition. The matter came for hearing on August 3, 2026; the matter was continued for meaningful meet and confer to take place.

II. Discussion

Meet and Confer

The Civil Discovery Act requires a moving party to attest to a good faith meet and confer effort as described in Code of Civil Procedure section 2016.040 before a motion to compel further discovery responses may be granted. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Specifically, "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) "[A]ttempting informal resolution means more than the mere attempt by the discovery proponent 'to persuade the objector of the error of his ways' and 'a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Here,

Plaintiff submits the declaration of her counsel of record, Evgeny Swarovski, attesting to additional meet and confer efforts as follows: On August 6, 2026 at 1:00 p.m., the parties met and conferred via Zoom. (Swarovski Decl., ¶2.)

Ms. Swarovski further states that Mr. Thompson agreed to send supplemental responses no later than August 6, 2026. (Id.) To date, no supplemental responses have been received and no extension has been requested. (Id., ¶3.) Thus, the Court finds that Plaintiff has fulfilled the meet and confer requirement.

Form Interrogatories

A party who receives interrogatories must respond separately to each individual request by providing an answer containing the information sought, producing writings, or an objection. (Code Civ. Proc., § 2030.210, subd. (a).)

A party may then move for a further response to interrogatories where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).)

Finally, California Rules of Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules Ct., Rule 3.1345, subd. (a)(3).) 2

Here, Plaintiff moves for an order compelling Mr. Thompson to provide further responses to Form Interrogatories ("FROG") (Set One) nos. 2.6, 12.1, 12.4, 15.1, 17.1, and 50.1 through 50.6. The motion is made on the grounds that Mr. Thompson's answers to the FROGs are evasive and incomplete. The Court agrees for the reasons set forth below.

First, all of the interrogatories seek information directly related to Plaintiff's claims and/or Mr. Thompson's affirmative defenses. Specifically, FROG no. 2.6 seeks Mr. Thompson's employment information including contact information for his present employer or place of self-employment; dates of employment; job title; and the nature of the

work from five years prior to the subject incident to present. (Plf. Sep. Stmt. at 2:20-25.) Similarly, FROG no. 12.1 seeks the contact information from witnesses to the subject incident. (Id. at 3:19-26.) Likewise, FROG no. 12.4 seeks the contact information of witnesses with knowledge of the any physical evidence such as photographs, videotapes, film depicting the subject incident or Plaintiff's injuries. (Id. at 4:17-26.) California courts have held that discovery should not be denied if the information sought has any relevance to the subject matter. Thus, while relevancy is a possible ground for an objection, it is difficult to adequately justify it. (See generally *Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 217.) Mr. Thompson's opposition makes no argument as to the relevancy of these FROGs as it pertains to the instant case.

Moreover,
FROG nos. 15.1 and 17.1 seek facts, witnesses, and identification of documentary evidence that Mr. Thompson relies on for denials of material allegations and Request for Admissions, as well as reliance for affirmative defenses. (Plf. Sep. Stmt. at 5:16-24, 7:11-19.) Additionally, FROG nos. 50.1 through 50.6 seek facts related to the agreement, alleged breaches of the agreement, and performance or excuse of performance at issue in this instant action. (Id. at pp. 8-13.)

In response to the FROGs at issue, Mr. Thompson provides incomplete answers. (See Code Civ. Proc., § 2030.220 [(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.].) For example, in response to FROG no. 15.1, Mr. Thompson provides names of the witnesses and identifies documentary evidence but fails to include the contact information for the witnesses and the person(s) in possession of these documents. (Plf. Sep. Stmt. at 6:19-22.) In another instance, in response to FROG no. 50.6, Mr. Thompson merely identified the October 26, 2023 written lease agreement and appears to argue that Plaintiff fraudulently refused to credit a \$15,000.00 cash payment. (Id. at 12:25-27.) However, FROG no. 50.6 explicitly asked: "Is any agreement alleged

in the pleadings ambiguous? If so, identify each ambiguous agreement and state why it is ambiguous.” (Id. at 12:20-22.) This is completely unresponsive to the question posed by the interrogatory in question.

Request for Sanctions

Code Civil

Procedure Section 2030.300, subdivision (d) provides for the imposition of monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel further unless the court finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

Here,

Plaintiff’s counsel seeks \$4,500.00 in discovery sanctions against Mr. Thompson consisting of 10.0 hours for reviewing discovery responses, analyzing the deficiencies, meet and confer efforts, preparing the present motion and supporting papers, preparing a reply, and conducting additional meet and confer at an hourly rate of \$450.00. The Court finds the hourly rate reasonable but finds that the hours expended on insufficient meet and confer efforts, reviewing responses, and analyzing the discovery responses are unreasonably high given the nature of the case and that no reply brief was filed. As such, the Court will award reduced discovery sanctions in the amount of \$2,250.00 for 5.0 hours of work at an hourly rate of \$450.00.

III.

Conclusion

Plaintiff Svetlana Voynova’s Motion to Compel Further Responses to Form Interrogatories (Set One) is GRANTED. The Request for Discovery Sanctions is also GRANTED in part.

Defendant Patrick Thompson Jr. is ordered to serve verified, code-compliant further responses to Form Interrogatories (Set One) nos. 2.6, 12.1, 12.4, 15.1, 17.1, and 50.1 through 50.6 within 30 days of this order.

Defendant Patrick Thompson Jr. is also ordered to pay \$2,250.00 in discovery sanctions to Plaintiff’s law firm within

30 days of this order.

Plaintiff Svetlana Voynova to give
notice.